

FILED BY:

TENTATIVE RULING:

Counsel to appear (by zoom is sufficient). For good cause, appearance of the claimant and the guardian ad litem is waived.

19. 9:00 AM CASE NUMBER: MSC20-01863

CASE NAME: JACKSON VS ANOVA CENTER

***HEARING ON MOTION IN RE: (REDACTED) SEAL AND POINTS AND AUTHORITES IN SUPPORT OF MOTION TO SEAL**

FILED BY:

TENTATIVE RULING:

Parties to appear (by zoom is sufficient).

20. 9:00 AM CASE NUMBER: MSC20-01963

CASE NAME: NORA CHAVEZ VS GAWFCO ENTERPRISES

***HEARING ON MOTION IN RE: ORDER DIRECTING COMPLIANCE WITH BELAIRE WEST NOTICE PROCESS**

FILED BY: CHAVEZ, NORA

TENTATIVE RULING:

Plaintiff moves for an order compelling defendant to comply with the Belaire-West notice process. Defendant opposes on the ground that such disclosure is precluded by the California Consumer Privacy Act of 2018 and the California Privacy Rights Act of 2020. Defendant further contends that the “opt-out” process should be changed to an “opt-in” process.

The CCPA does not preclude use of the *Belaire-West* notice process, because compliance with court-ordered discovery, at a minimum, constitutes “defending legal claims.” (Civil Code § 1798.145(a)(1)(E).)

Moreover, in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 553, the court noted that while home contact information “is generally considered private, the second *Hill* requirement that a reasonable expectation of private in the particular circumstances is not met.” It added that “[w]e doubt Williams’s fellow employees would expect that information to be withheld from a plaintiff seeking to prove labor law violations committed against them and to recover civil penalties on their behalf.” (*Id.*)

As to converting the “opt-out” process to an “opt-in” process, in *Williams* the Supreme Court specifically approved of the “opt-out” process. It stated that “the *Belaire-West* trial court was correct to order disclosure, subject to employees being given notice of the action, assurance that they were under no obligation to talk to plaintiffs’ counsel, and an opportunity to opt out of disclosure by returning an enclosed postcard.” (*Id.*)

Plaintiff’s motion is granted.

As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.